

STATE OF NEW YORK

9539 --A

IN SENATE

March 23, 2026

Introduced by Sens. BYNOE, CLEARE, HARCKHAM, KAVANAGH, MARTINEZ, MYRIE, SCARCELLA-SPANTON, SKOUFIS -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to requiring the department of health to create and issue a five-year plan with its proposals to best mitigate the persistence of lead in school water across the state

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 1110 of the public health law is amended by adding
2 a new subdivision 7 to read as follows:

3 7. The department, in consultation with the commissioner of education,
4 shall create and issue a five-year plan with its proposals to mitigate
5 the presence of lead in school water across the state, including spec-
6 ification of any improvements to lead testing accuracy, improvements to
7 verifying that remediation has occurred before an outlet is returned to
8 service, and the development of standardized criteria and reporting
9 requirements to distinguish between outlets that have been remediated
10 through repair, replacement, or other corrective action and outlets that
11 have been deemed remediated solely by being taken out of service or
12 otherwise rendered inoperable. The plan shall also specify any funding
13 or technical assistance the department intends to provide to school
14 districts to support their efforts to test and remove lead from school
15 water under this section.

16 § 2. This act shall take effect on the one hundred eightieth day after
17 it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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